

"The court shall direct that the party prevailing on any motion under this chapter be awarded the reasonable attorney's fees and costs of making or opposing the motion unless the court finds that the other party acted with substantial justification or that other circumstances make the imposition of attorney's fees and costs unjust." (Code Civ. Proc., § 405.38.) Here, the Court finds that FAT.Homes acted with substantial justification in moving to expunge the lis pendens and the Court is not inclined to order any sanctions. In this respect, it is significant that while FAT.Homes's position does not prevail, both of the present combatants are essentially in agreement that FAT.Homes is as much an innocent victim of Brar's sharp practice as Bedi is.

Courtroom Clerk's Session

9:01 AM

CASE NUMBER: MS25-0971

CASE NAME: POETS PROPERTIES, LLC VS. SHANNON WILSON

***DEMURRER / MOTION TO STRIKE HEARING**

FILED BY: WILSON, SHANNON D.

TENTATIVE RULING:

This limited-jurisdiction case is **reassigned** to Department 14 (Judge Athanasiou) for all purposes. The demurrer and motion to strike are **continued** to January 27, 2026, at 9:00 a.m. in Department 14.